

HOUSE No. 3401

The Commonwealth of Massachusetts

PRESENTED BY:

Kelly W. Pease

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act state funded contruction work.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>1/17/2025</i>

HOUSE No. 3401

By Representative Pease of Westfield, a petition (accompanied by bill, House, No. 3401) of Kelly W. Pease relative to state funded construction work. State Administration and Regulatory Oversight.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act state funded construction work.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, including the
2 provisions of Chapter 149 of the General Laws, as appearing in the 2022 Official Edition, all
3 contracts for construction projects offered or entered into by any commonwealth agency must
4 specify a two-year schedule for completion. Failing to complete any project within the two-year
5 schedule shall result in a financial penalty equal to ten percent of the value of the contract, which
6 shall be levied each month until the project is concluded. If a project runs into unforeseen issues
7 or problems, the contractor may submit a written explanation to the commissioner of the division
8 of capital asset management and maintenance and appeal for an extension for a specific amount
9 of time not to exceed six months. The commissioner shall promulgate rules and regulations
10 pursuant to the approval process of said appeals.

11 SECTION 2. This act shall take effect upon its passage.